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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

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No. 2087/82 - FRIDAY SEPTEMBER 07, 2018

(Published by Authority)

PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

NORTH WESTERN PROVINCE PROVINCIAL COUNCIL

Provincial Environmental Statute No. 12 of 1990

ORDER UNDER SECTION 39

BY VIRTUE of the powers vested in me by Section 39 of the Provincial Environmental Statute No. 12 of 1990, I, Dharmasiri Dassanayake, Provincial Minister of Environment, do by this Order-

1. prohibit -

- (i) the manufacture of polythene or any polythene product of twenty (20) microns or below in thickness for in country use ; or
- (ii) the sale, offer for sale, offer free of charge, exhibition or use of polythene or any polythene product which is twenty (20) microns or below in thickness within the North Western Province :

Provided that polythene or any polythene product of twenty (20) microns or below in thickness may be permitted to be used with the prior written approval of the Authority for the purposes specified in the Schedule hereto.

- 2. Declare that the Order published in *Gazette Extraordinary* No. 1567/4 of September 15, 2008 is hereby rescinded without prejudice to anything done there under.

For the purposes of this Order-

“Authority” means the Provincial Environmental Authority established under the Provincial Environmental Statute No. 12 of 1990 ;



“Polythene” means all forms of polyethylene, polypropylene, polystyrene, polyvinyl chloride, polyethylene terephthalate or any other similar raw material.

DHARMASIRI DASSANAYAKE,
Chief Minister (NWP)

and Minister of Finance & Planning, Engineering Services,
Law & Peace, Education, Local Government & Provincial Administration,
Economic Improvement, Environment, Water Supply & Drainage, Tourism

Office of Chief Minister
Kurunegala,

On this 30th day of August 2018.

SCHEDULE

PERMITTED USES

1. Use of the following material for the purpose of laminating :-

- (a) Polyethylene Terephthalate (PET) whether or not metalized or holographic PET film ;
- (b) Polypropylene films whether or not metalized or pearlised ;
- (c) Nylon;
- (d) Cast Polypropylene (CPP) or metalized Cast Polypropylene (CPP) ;
- (e) Polyvinyl chloride (PVC);
- (f) Polyethylene Terephthalate Glycol (PETG).

2. Use for medical or pharmaceutical purposes in the absence of any other suitable alternative.

09 - 582/1

NORTH WESTERN PROVINCE PROVINCIAL COUNCIL

Provincial Environmental Statute No. 12 of 1990

ORDER UNDER SECTION 39

BY VIRTUE of the powers vested in me by Section 39 of the Provincial Environmental Statute, No. 12 of 1990, I, Dharmasiri Dassanayake, Provincial Minister of Environment, do by this Order prohibit the activities specified in Schedule hereto.

DHARMASIRI DASSANAYAKE,
Chief Minister (NWP)

and Minister of Finance & Planning, Engineering Services,
Law & Peace, Education, Local Government & Provincial Administration,
Economic Improvement, Environment, Water Supply & Drainage, Tourism

Office of Chief Minister
Kurunegala,

On this 30th day of August 2018.

SCHEDULE

Activities :-

- (i) the manufacture of food wrappers from polythene as a raw material for in country use; and
- (ii) the sale, offer for sale, offer free of charge, exhibition or use of food wrappers manufactured from polythene as a raw material within the North Western Province.

For the purposes of this Order-

“food wrappers” means lunch sheets.

“Polythene” includes high density polyethylene, low density polyethylene and polypropylene.

09 - 582/2

NORTH WESTERN PROVINCE PROVINCIAL COUNCIL

Provincial Environmental Statute No. 12 of 1990

ORDER UNDER SECTION 39

BY VIRTUE of the powers vested in me by Section 39 of the Provincial Environmental Statute, No12 of 1990 I, Dharmasiri Dassanayake, Provincial Minister of Environment, do by this Order prohibit the activities specified in Schedule I hereto and exempt the items specified in Schedule II hereto.

DHARMASIRI DASSANAYAKE,

Chief Minister (NWP)

and Minister of Finance & Planning, Engineering Services,
Law & Peace, Education, Local Government & Provincial Administration,
Economic Improvement, Environment, Water Supply & Drainage, Tourism

Office of Chief Minister

Kurunegala,

On this 30th day of August 2018.

SCHEDULE I

Activities :-

- (i) manufacture of any bag of high density polyethylene as a raw material for in country use; and
- (ii) sale, offer for sale, offer free of charge, exhibition or use of any bag manufactured from high density polyethylene as a raw material within the North Western Province.

For the purposes of this Schedule bags manufactured from high density polyethylene as a raw material, means bags of any dimension with or without handles for the purpose of carrying products or goods and includes grocery bags generally referred to as “sili - sili bags”.

SCHEDULE II

Exempted items :-

1. Garbage bag of the following dimensions or above :

Length - 600 mm

Width - 260mm

Height - 900 mm

2. Textile bag of following dimensions or above :

Length - 400 mm

Height - 500 mm

09- 582/3

NORTH WESTERN PROVINCE PROVINCIAL COUNCIL

Provincial Environmental Statute No. 12 of 1990

REGULATIONS made by the Provincial Minister of Environment under Section 61 of the Provincial Environmental Statute, No. 12 of 1990, read with Sections 27 and 28 of that Statute.

DHARMASIRI DASSANAYAKE,

Chief Minister (NWP)

and Minister of Finance & Planning, Engineering Services,
Law & Peace, Education, Local Government & Provincial Administration,
Economic Improvement, Environment, Water Supply & Drainage, Tourism

Office of Chief Minister

Kurunegala,

On this 30th day of August 2018.

REGULATIONS

1. These Regulations may be cited as the Provincial Environmental (Prohibition of open burning of refuse and other combustible matters inclusive of plastics) Regulations No. 1 of 2018.
2. No person shall burn openly or cause to, allow or permit the open burning of refuse or other combustible matters inclusive of plastics.
3. Any person who fails to comply with the regulations above shall be liable to an offence and punishable under Section 60 of the Provincial Environmental Statute, No12 of 1990.

09 - 582/4

NORTH WESTERN PROVINCE PROVINCIAL COUNCIL

Provincial Environmental Statute No. 12 of 1990

Order under Section 39

BY VIRTUE of the powers vested in me by Section 39 of the Provincial Environmental Statute, No. 12 of 1990, I, Dharmasiri Dassanayake, Provincial Minister of Environment, do by this Order prohibit the use of all forms of polyethylene, polypropylene, polyethylene products or polypropylene products as decoration in political, social, religious, national, cultural or any other event or occasion with the North Western Province.

DHARMASIRI DASSANAYAKE,
Chief Minister (NWP)
and Minister of Finance & Planning, Engineering Services,
Law & Peace, Education, Local Government & Provincial Administration,
Economic Improvement, Environment, Water Supply & Drainage, Tourism

Office of Chief Minister
Kurunegala,
On this 30th day of August 2018.

09 - 582/5

NORTH WESTERN PROVINCE PROVINCIAL COUNCIL

Provincial Environmental Statute No. 12 of 1990

Order under Section 39

BY VIRTUE of the powers vested in me by Section 39 of the Provincial Environmental Statute, No. 12 of 1990, I, Dharmasiri Dassanayake, Provincial Minister of Environment, do by this Order prohibit the activities specified in Schedule hereto.

DHARMASIRI DASSANAYAKE,
Chief Minister (NWP)
and Minister of Finance & Planning, Engineering Services,
Law & Peace, Education, Local Government & Provincial Administration,
Economic Improvement, Environment, Water Supply & Drainage, Tourism

Office of Chief Minister
Kurunegala,
On this 30th day of August 2018.

SCHEDULE

Activities :-

- (i) the manufacture of food containers, plates, cups and spoons from expanded polystyrene for in country use ;
and
- (ii) the sale, offer for sale, offer free of charge, exhibition or use of food containers, plates, cups and spoons
manufactured from expanded polystyrene within the North Western Province.

For the purposes of this Order-

“food containers” means lunch boxes.

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